

# **CV-22-004091 DISCOVER BANK vs SEPULVEDA, ANASTASIA – Defendant’s Motion to Set Aside Default & Judgment – DENIED without prejudice, and unopposed.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On June 12, 2026, Defendant filed the instant motion seeking relief under Code of Civil Procedure section 473.5. “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473.) “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Id.) The motion is procedurally defective. There is no proof of service on the Plaintiff. Even if the motion was served on Plaintiff, the motion is likely untimely. Section 473(b) requires that motions for relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment . . . was taken.” (Code Civ. Proc., § 473.) The default and default judgment were entered on December 6, 2022. Defendant knew about the case at least as of June 2025 when Plaintiff attempted to garnish her wages but did not file the instant motion until a year later. Accordingly, the motion is denied without prejudice.

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